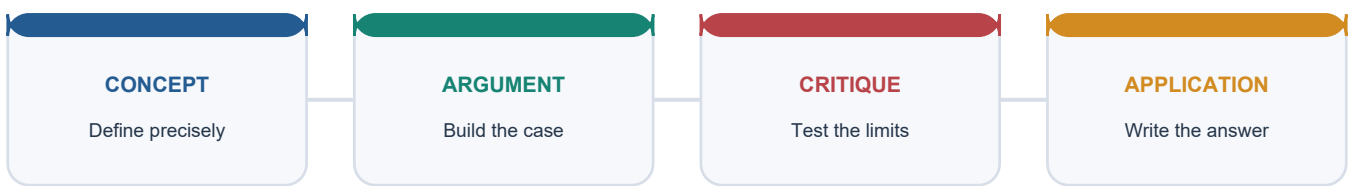


COMPLETE LEARNING SESSION

Polity 22 - Special Provisions

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Polity 22 - Special Provisions - Complete Learning Package

Subject: Indian Polity | **GS:** II + Prelims | **Legal/current control:** 7 September 2026 **Scope:** Articles 371-371J are the centre. Article 370/35A is retained because all three canonical Topic 22 owners expressly own the minimum history and current legal position. Topic 26 Scheduled/Tribal Areas and Topic 53 special classes appear only as bounded distinctions.

Source and verification ledger

Priority	Source checked	Use
1	upsc- ai- kit\ knowledge\ Polity\ basic\ Special- Provisions.md	Canonical Core ownership and Article 371-371J spine
1	upsc- ai- kit\ knowledge\ Polity\ 22_ Special- Provisions_ Complete- Topic- Package.md	Existing complete owner, Article 370/35A and practice ownership
1	upsc- ai- kit\ knowledge\ Polity\ advanced\ 22_ Special- Provisions.md	Optional depth and current-law cautions
2	<i>Indian Polity by M. Laxmikanth</i> , Sixth Revised Edition, PDF pp. 774-785	State-wise textbook reconciliation
2	<i>Courseware on Indian Polity by M. Laxmikanth</i> , chapter 78 from PDF p. 1120	Secondary OCR cross-check
3	Official Constitution of India, updated 1 May 2026, Part XXI pp. 263-277	Exact clauses, footnotes, insertion and commencement dates
3	Constitution Amendment Acts: 13th, 22nd, 27th, 32nd, 35th, 36th, 53rd, 55th, 56th and 98th	Amendment effects
3	Andhra Pradesh Reorganisation Act, 2014, section 97	Post-bifurcation Article 371D adaptation
3	Telangana G.S.R. 820(E), 29 August 2018 / G.O.Ms.No.124, 30 August 2018	Current Telangana local-cadre order
3	Andhra Pradesh S.O. 5777(E), 15 December 2025 / G.O.Ms.No.45, 20 April 2026	Current Andhra Pradesh local-cadre order
3	Karnataka official district notification page, 6 November 2013; KKRDB portal	Article 371J implementation/current nomenclature
3	<i>P. Sambamurthy v. State of Andhra Pradesh</i> (1987) official JUDIS PDF	Article 371D(5) invalidity
3	<i>R.C. Poudyal v. Union of India</i> (1993) official JUDIS PDF	Sikkim representation context
3	<i>In re Article 370</i> , 2023 INSC 1058, official Supreme Court PDF	Current Article 370 holdings
3	MHA J&K Reorganisation material; ECI 2024 Assembly results	Date-stamped J&K/Ladakh status

Bounded source note: No current official order proving reconstitution/continuous operation of the Maharashtra or Gujarat Article 371 development boards was located in the bounded check. The constitutional power and responsibilities are stated exactly, while present board existence is not inferred. No official notification extending the original Tuensang ten-year arrangement was located; only its constitutional base period and extension route are stated. Qdrant was not required.

SESSION 1 - Part XXI and asymmetric federalism

VISUAL FIRST

ONE CONSTITUTION

- |
- +-- general federal rules
- |
- +-- Part XXI differentiation
 - +-- temporary bridge: Article 370
 - +-- State-specific designs: Articles 371-371J

Asymmetry changes selected rules for a constitutional purpose; it does not create a second sovereignty.

Definition

Asymmetric federalism is constitutionally authorised differentiation among units of a federation in powers, safeguards or institutions. Part XXI uses several distinct designs rather than one uniform grant of autonomy.

Answer-grabbing line

India's federal unity is not mechanical uniformity: Part XXI converts historical bargains, identity protection and regional disadvantage into bounded constitutional rules.

Must-write keywords

Part XXI; asymmetric federalism; differentiated design; one Union; purpose-specific protection

Core explanation and evidence

Articles 371-371J apply to twelve States but do different work: regional-development duties, Assembly-consent shields, legislative committees, local opportunity, integration guarantees, law-and-order responsibility and minimum Assembly strength. A provision must therefore be identified by five coordinates: State, Article, protected interest, decision-maker and legal instrument. Article 370/35A belongs here only because the canonical Topic 22 owners retain the minimum historical and current-law comparison. Detailed Fifth/Sixth Schedule administration belongs to Topic 26, and Articles 330 onward belong to Topic 53.

How to write the paragraph

- **Claim:** Part XXI is an instrument of integration through differentiation.
- **Named evidence:** Articles 371, 371A, 371B, 371C, 371D-371E, 371F, 371G, 371H, 371I and 371J use visibly different actors and subject matters.
- **Analysis:** The design allows the Union to answer region-specific political problems without abandoning a common Constitution.
- **Qualification:** The label 'special provision' does not itself tell us the degree of autonomy; the operative clause must be decoded.

Prelims trap

Do not describe every Article 371 provision as autonomy or as a veto over Parliamentary law.

Mains use

Open with the distinction between equal constitutional membership and differentiated institutional arrangements.

Mini recap

Location -> purpose -> State -> actor -> mechanism -> limit.

SESSION 2 - Historical and amendment map

VISUAL FIRST

1956: 371 recast

- > 1962-73: Nagaland, Assam, Manipur, AP opportunity
- > 1974-75: Sikkim association then Statehood
- > 1986-87: Mizoram, Arunachal Pradesh, Goa
- > 2012/13: Karnataka
- > 2014: AP-Telangana adaptation
- > 2019/23: Article 370 change and review

The family grew through different settlements; chronology prevents false equivalence.

Definition

The amendment map links each clause to the constitutional problem that produced it and distinguishes enactment from commencement.

Answer-grabbing line

The Article 371 family is a constitutional archive of India's territorial integration, peace settlements and regional-equity bargains.

Must-write keywords

7th; 13th; 22nd; 27th; 32nd; 35th/36th; 53rd; 55th; 56th; 98th Amendments

Core explanation and evidence

The Seventh Amendment Act, 1956, section 22 substituted Article 371; the Bombay Reorganisation Act, 1960 adapted it for Maharashtra and Gujarat. The Thirteenth Amendment Act, 1962, section 2 inserted Article 371A with effect from 1 December 1963. The Twenty-second Amendment Act, 1969, section 4 inserted 371B; the Twenty-seventh Amendment Act, 1971, section 5 inserted 371C with effect from 15 February 1972. The Thirty-second Amendment Act, 1973, section 2 removed Andhra Pradesh and old clause (1) from Article 371, while section 3 inserted 371D and 371E with effect from 1 July 1974. The Thirty-fifth Amendment Act, 1974 created Sikkim's associate-State phase through Article 2A and the then Tenth Schedule; the Thirty-sixth Amendment Act, 1975 replaced that arrangement with Statehood and Article 371F. The Fifty-third, Fifty-fifth and Fifty-sixth Amendments inserted 371G, 371H and 371I. The Ninety-eighth Amendment Act, 2012 inserted 371J, effective 1 October 2013.

How to write the paragraph

- **Claim:** Amendment chronology reveals that no single political bargain created the Article 371 family.
- **Named evidence:** Nagaland's 1962 settlement, Sikkim's 1974-75 transition and Karnataka's 2012 regional-development amendment arose in different constitutional settings.
- **Analysis:** Chronology converts a memory list into causal explanation and clarifies why the mechanisms vary.
- **Qualification:** The year in an Amendment Act's title may differ from its commencement date; both should be stated where examinable.

Prelims trap

The Ninety-eighth Amendment is the 2012 Act, although Article 371J commenced on 1 October 2013.

Mains use

Use three chronological clusters: integration, Statehood transition and regional equality.

Mini recap

Amendment number -> year -> provision changed -> effect -> commencement.

SESSION 3 - Article 371: Maharashtra and Gujarat

VISUAL FIRST

PRESIDENTIAL ORDER

|
Governor's special responsibility

|
boards + annual report + equitable funds

|
technical/vocational facilities + State-service opportunity

Article 371 constitutionalises balanced development inside two States.

Definition

Article 371(2) permits the President to assign the Governor specified responsibilities for regional development in Maharashtra and Gujarat.

Answer-grabbing line

Article 371 treats intra-State regional imbalance as a constitutional accountability problem, not merely a budgetary preference.

Must-write keywords

Presidential order; development boards; annual Assembly report; equitable allocation; adequate opportunity

Core explanation and evidence

For Maharashtra the text names Vidarbha, Marathwada and the rest of Maharashtra; for Gujarat it names Saurashtra, Kutch and the rest of Gujarat. The assigned responsibility can cover separate development boards, annual reports before the Legislative Assembly, equitable allocation of development expenditure subject to State-wide requirements, and adequate facilities for technical education, vocational training and employment in State-controlled services. The constitutional text authorises a Presidential order: it does not prove that a particular board is continuously constituted. As checked on 7 September 2026, Maharashtra's Planning Department publishes region-wise allocations, but this package does not infer current board status without a current constituting order; no current Gujarat board order was located in the bounded official search.

How to write the paragraph

- **Claim:** Article 371 links regional equity to visible constitutional reporting.
- **Named evidence:** Clause (2)(a) requires annual placement of each development board's working report before the State Assembly when the responsibility is assigned.
- **Analysis:** Legislative reporting can expose whether fiscal allocation matches the promise of balanced development.
- **Qualification:** The legal power and the current administrative existence of a board are separate questions.

Prelims trap

The Governor does not possess an automatic free-standing development power; the President may assign the special responsibility by order.

Mains use

Evaluate Article 371 through inputs, allocations, opportunities and measurable regional outcomes.

Mini recap

Regions -> President -> Governor -> boards/report -> funds/opportunity.

SESSION 4 - Article 371A: the Nagaland Assembly-resolution shield

VISUAL FIRST

ACT OF PARLIAMENT concerns:

[practices] [customary law] [customary justice] [land + resources]



does not apply to Nagaland unless its Assembly resolves otherwise

The shield is subject-specific, State-wide and triggered by the subject matter of a Parliamentary Act.

Definition

Article 371A(1)(a) prevents automatic application to Nagaland of Parliamentary Acts concerning four enumerated fields unless the Nagaland Legislative Assembly resolves that they should apply.

Answer-grabbing line

Article 371A converts consent from political courtesy into a constitutional gateway for four identity-and-resource fields.

Must-write keywords

Assembly resolution; Naga practices; customary law and procedure; customary justice; land and its resources

Core explanation and evidence

The four fields must be reproduced accurately: religious or social practices of the Nagas; Naga customary law and procedure; administration of civil and criminal justice involving decisions according to Naga customary law; and ownership and transfer of land and its resources. 'Criminal justice' is not protected in the abstract: the constitutional phrase ties it to decisions according to Naga customary law. 'Resources' appears in Article 371A but not in Article 371G's land clause. The Assembly resolution controls application; the Governor does not grant consent. The shield does not cover every Parliamentary Act and does not place Nagaland outside judicial review or the constitutional order.

How to write the paragraph

- **Claim:** Article 371A protects decision-making authority, not merely cultural symbolism.
- **Named evidence:** Clause (1)(a) makes application of Parliamentary law in four enumerated fields depend on a Nagaland Assembly resolution.
- **Analysis:** The mechanism gives local democratic institutions a constitutional role where custom, justice and resource control are closely connected.
- **Qualification:** The shield is field-specific and cannot be converted into a general State veto over Union legislation.

Prelims trap

Do not shorten the fourth field to 'land'; the text says ownership and transfer of land and its resources.

Mains use

Show how consent, custom and democratic representation interact rather than calling the clause blanket autonomy.

Mini recap

Four fields -> Parliamentary Act -> no application -> Assembly resolution.

SESSION 5 - Article 371A: Governor, grants and the Tuensang transition

VISUAL FIRST

371A BEYOND THE SHIELD

- +++ law/order: conditional Governor responsibility
- +++ grants: earmarked Union purpose stays in matching demand
- +++ Tuensang: Regional Council + ten-year base transition
- \-- difficulty order: only within first three years

The permanent text contains several historically bounded devices that must not be collapsed into the four-field shield.

Definition

Article 371A also contains conditional executive, financial and transitional clauses, including a specially timed Tuensang arrangement.

Answer-grabbing line

Nagaland's settlement combined enduring subject protection with transitional administration; confusing the two produces both legal and historical error.

Must-write keywords

individual judgment; ministerial consultation; earmarked grant; Tuensang Regional Council; ten-year base period

Core explanation and evidence

Under clause (1)(b), the Governor has a special law-and-order responsibility only for so long as the specified pre-Statehood internal disturbances continue; the Governor consults the Council of Ministers but acts in individual judgment, and the President may terminate the responsibility. This is textually conditional, so this package does not assert that its factual trigger currently persists. Clause (1)(c) protects the purpose of Union grants in the demand for grants. Clause (1)(d) contemplated a 35-member Tuensang Regional Council. Clause (2) created special Tuensang administration for ten years from Nagaland's formation on 1 December 1963 - a base period ending 30 November 1973 - or a further period notified by the Governor on the Council's recommendation. No later extension is asserted here because no controlling notification was located. Clause (3)'s difficulty-removal power itself expired after three years.

How to write the paragraph

- **Claim:** The temporal boundary is part of the constitutional meaning of the Tuensang clauses.
- **Named evidence:** Article 371A(2) states ten years from State formation, subject only to a notified extension on Regional Council recommendation.
- **Analysis:** The transition sought gradual institutional integration rather than permanent exceptional administration.
- **Qualification:** The text remains printed, but a historical transition should not be described as a presently operating routine without an official continuity instrument.

Prelims trap

The Tuensang mechanism is separate from the four-field Assembly-resolution shield.

Mains use

Use the distinction between enduring protection and time-bound transition to demonstrate constitutional precision.

Mini recap

Conditional law/order -> earmarked grants -> Regional Council -> 1963-73 base period.

SESSION 6 - Article 371B: Assam's Assembly committee

VISUAL FIRST

PRESIDENTIAL ORDER

- > committee inside Assam Legislative Assembly
- > MLAs from Sixth Schedule Part I tribal areas
- > other MLAs if the order specifies
- > procedural modifications for functioning

Article 371B brings tribal-area representation into the State legislature; it does not create a territorial council.

Definition

Article 371B empowers the President to constitute and define the functions of a special committee of the Assam Legislative Assembly.

Answer-grabbing line

Article 371B protects voice through an internal legislative committee rather than through a separate tier of territorial autonomy.

Must-write keywords

Presidential order; Assembly committee; Part I of paragraph 20 table; tribal-area MLAs; procedure

Core explanation and evidence

The committee consists of Assembly members elected from the tribal areas specified in Part I of the table appended to paragraph 20 of the Sixth Schedule, together with such other Assembly members as the Presidential order specifies. The order may also modify the Assembly's rules of procedure for the committee's constitution and proper functioning. Article 371B therefore borrows a Sixth Schedule territorial reference but creates a different institution: an Assembly committee. Current composition and detailed functions depend on the governing Presidential order and Assembly procedure; they should not be invented from the constitutional sentence alone.

How to write the paragraph

- **Claim:** Article 371B internalises tribal-area representation within Assam's legislative process.
- **Named evidence:** The constitutional actor is the President, and the institutional location is the Assam Legislative Assembly.
- **Analysis:** This design can influence State-wide lawmaking without transferring the Assembly's general authority to the committee.
- **Qualification:** Its effectiveness depends on the order, procedure and actual legislative practice, not on the bare constitutional label.

Prelims trap

A 371B committee is not an Autonomous District Council under the Sixth Schedule.

Mains use

Contrast voice inside the legislature with territorial self-government outside it.

Mini recap

Assam -> President -> Assembly committee -> specified tribal-area members.

SESSION 7 - Article 371C: Manipur's Hill Areas architecture

VISUAL FIRST

HILL AREAS MEMBERS -> Assembly committee
PRESIDENT -> committee/functions + business/procedure modifications
GOVERNOR -> special responsibility + annual/on-demand report
UNION -> directions on Hill Areas administration

Article 371C combines representation, executive responsibility, reporting and Union oversight.

Definition

Article 371C authorises a Presidential order for a Hill Areas Committee in the Manipur Assembly and creates a Governor-to-President accountability channel.

Answer-grabbing line

Article 371C is a multi-node safeguard: hill representation is backed by gubernatorial reporting and a limited Union direction power.

Must-write keywords

Hill Areas Committee; Presidential declaration; Governor's special responsibility; annual report; Union directions

Core explanation and evidence

The committee comprises Assembly members elected from the Hill Areas. The President may define its constitution and functions, modify State Government business rules and Assembly procedure, and assign the Governor special responsibility to secure proper functioning. The Governor reports annually, or whenever the President requires, on Hill Areas administration. Union executive power extends to directions to the State on that administration. 'Hill Areas' means areas declared by Presidential order; it is not an informal geographic label. The mechanism does not itself create a separate legislature or Sixth Schedule council.

How to write the paragraph

- **Claim:** Article 371C turns a regional representation problem into a chain of constitutional accountability.
- **Named evidence:** The Article connects a Hill Areas Committee, Governor reports to the President and possible Union directions.
- **Analysis:** Multiple actors reduce the risk that hill concerns disappear within ordinary valley-majority politics.
- **Qualification:** The arrangement safeguards participation but cannot by itself resolve every political, ethnic or administrative conflict.

Prelims trap

Article 371C, not Article 371B, contains the annual Governor report and Union-direction architecture.

Mains use

Map the four actors and then assess whether reporting produces substantive participation.

Mini recap

Declared Hill Areas -> committee -> Governor report -> President/Union oversight.

SESSION 8 - Article 371D: constitutional design for equitable opportunity

VISUAL FIRST

REGIONAL IMBALANCE

|
President's Article 371D order
|
local cadres + local areas
|
residence/study rules
|
public employment + educational admission

Article 371D operates through detailed Presidential orders, not through a self-executing percentage.

Definition

Article 371D authorises differentiated arrangements within Andhra Pradesh and Telangana to secure equitable public-employment and educational opportunities.

Answer-grabbing line

Article 371D constitutionalises territorial fairness while leaving the working map of cadres, zones and local candidature to Presidential orders.

Must-write keywords

equitable opportunity; local cadres; local areas; residence or study; Presidential order

Core explanation and evidence

Clause (1), as adapted in 2014, allows separate provisions for different parts of each State according to that State's requirements. Clause (2) permits organisation of classes of civil posts into local cadres; specification of local areas for recruitment and admissions; and preference or reservation for candidates who resided or studied for the period specified in the order. The provision is an exception-bearing constitutional framework, but its concrete zones, cadres, percentages and local-candidate tests come from orders and implementing rules. It should not be described as a general State power to impose domicile restrictions outside this constitutional route.

How to write the paragraph

- **Claim:** Article 371D connects regional justice to administratively defined opportunity units.
- **Named evidence:** Clause (2) expressly authorises local cadres, local areas and residence-or-study criteria for recruitment and admission.
- **Analysis:** The design can distribute scarce public opportunities across regions more evenly than a single State-wide pool.
- **Qualification:** Cadre fragmentation may also complicate mobility and administration, so equality of access requires transparent, periodically reviewed orders.

Prelims trap

The Constitution authorises the mechanism; it does not itself prescribe one permanent reservation percentage.

Mains use

Explain the order-making chain before evaluating local opportunity against administrative efficiency.

Mini recap

President -> cadres/areas -> criteria -> jobs/education -> equitable opportunity.

SESSION 9 - Article 371D after bifurcation and the tribunal distinction

VISUAL FIRST

2014 s.97 -> AP OR Telangana in clauses (1) and (3)

|

--- Telangana: G.S.R.820(E), 29-08-2018

--- Andhra Pradesh: S.O.5777(E), 15-12-2025

|

opportunity framework continues

TRIBUNAL TRACK -> Sambamurthy control -> abolition order 14-01-2020

Current local-cadre orders and historical tribunal clauses are legally separate tracks.

Definition

Post-bifurcation Article 371D continues for both successor States, while its former Administrative Tribunal mechanism has a distinct constitutional and institutional history.

Answer-grabbing line

The current Article 371D story is local cadres and equitable opportunity, not a still-functioning Andhra Pradesh Administrative Tribunal.

Must-write keywords

AP Reorganisation Act section 97; G.S.R. 820(E); S.O. 5777(E); P. Sambamurthy; G.S.R. 30(E)

Core explanation and evidence

Section 97 of the Andhra Pradesh Reorganisation Act, 2014 amended the marginal heading, substituted clause (1) for State-specific orders and inserted both States into clause (3). Telangana's Presidential Order, G.S.R. 820(E) dated 29 August 2018, superseded the 1975 order in its application to Telangana and was republished by G.O.Ms.No.124 dated 30 August 2018; it organises district, zonal and multi-zonal cadres. For Andhra Pradesh, S.O. 5777(E) dated 15 December 2025 superseded the 1975 order in its application to that State; G.O.Ms.No.45 dated 20 April 2026 republished it and provides district, zone and multi-zone structures. Tribunal history differs: P. Sambamurthy (1987) struck down Article 371D(5), including its proviso, because executive power to modify or annul tribunal orders violated rule of law/basic structure. Article 371D(8) allows presidential abolition; G.S.R. 30(E) of 14 January 2020 abolished the Andhra Pradesh Administrative Tribunal.

How to write the paragraph

- **Claim:** Bifurcation changed the territorial application of Article 371D without extinguishing its opportunity function.
- **Named evidence:** Section 97 of the 2014 Act adapted clauses (1) and (3), followed by separate State-specific Presidential orders.
- **Analysis:** Separate orders allow each successor State to organise cadres around its own administrative geography.
- **Qualification:** Order schedules and implementing arrangements are volatile; the date and instrument must accompany any current claim.

Prelims trap

P. Sambamurthy invalidated clause (5), not the entire Article 371D framework.

Mains use

Separate constitutional power, post-2014 statutory adaptation, current orders and tribunal history in four paragraphs.

Mini recap

2014 adaptation -> separate orders -> current cadres; tribunal -> case -> abolition.

SESSION 10 - Article 371E: Central University enabling power

VISUAL FIRST

ARTICLE 371E
Parliament MAY by law
|
establish a University
|
in Andhra Pradesh

A short enabling clause must not be inflated into an education-reservation provision.

Definition

Article 371E enables Parliament by law to establish a University in Andhra Pradesh.

Answer-grabbing line

Article 371E is constitutionally important for competence, but institutionally narrow: it authorises legislation and does not itself create a university or quota.

Must-write keywords

Parliament; enabling power; by law; Central University; Andhra Pradesh

Core explanation and evidence

The Thirty-second Amendment inserted Article 371E alongside Article 371D. Their proximity does not merge their functions. Article 371D addresses equitable opportunity and cadres through Presidential orders; Article 371E gives Parliament legislative competence to establish a university in Andhra Pradesh. Because the wording is 'may by law provide,' the Article is enabling, not self-executing. A question pairing 371E with Telangana or with local employment reservation is therefore incorrect.

How to write the paragraph

- **Claim:** Article 371E demonstrates that adjacent constitutional provisions can use different actors and legal instruments.
- **Named evidence:** Its actor is Parliament and its vehicle is a law, unlike the President's order under Article 371D.
- **Analysis:** The distinction matters because constitutional competence, institutional creation and admission policy are separate legal questions.
- **Qualification:** The Article does not by itself settle the later statutory structure or admission rules of any university.

Prelims trap

Article 371E refers to Andhra Pradesh, not Andhra Pradesh and Telangana.

Mains use

Use 371E as a short example of why the Article 371 family cannot be memorised by State alone.

Mini recap

371D = President/orders/opportunity; 371E = Parliament/law/university.

SESSION 11 - Sikkim: from associate State to full State

VISUAL FIRST

1973 political agreement

- > 35th Amendment, 1974: Article 2A + old Tenth Schedule
- > associate-State phase
- > 36th Amendment, 1975
- > Article 2A/Tenth Schedule omitted + Sikkim State + Article 371F

The two amendments mark different constitutional statuses and must never be collapsed.

Definition

Sikkim's integration proceeded through a brief associate-State arrangement followed by full Statehood and a detailed Article 371F settlement.

Answer-grabbing line

The Thirty-fifth and Thirty-sixth Amendments show integration as a staged constitutional process, not a single undifferentiated act.

Must-write keywords

Thirty-fifth Amendment 1974; Article 2A; former Tenth Schedule; Thirty-sixth Amendment 1975; Article 371F

Core explanation and evidence

The Constitution (Thirty-fifth Amendment) Act, 1974 inserted Article 2A and a Tenth Schedule creating an associate relationship for Sikkim. The Constitution (Thirty-sixth Amendment) Act, 1975 ended that model, amended the First and Fourth Schedules for Statehood and parliamentary representation, omitted Article 2A and the then Tenth Schedule, and inserted Article 371F with effect from 26 April 1975. The present Tenth Schedule on anti-defection is a later, unrelated schedule inserted by the Fifty-second Amendment, 1985. This chronology prevents the common error of attributing Article 371F to the Thirty-fifth Amendment.

How to write the paragraph

- **Claim:** Sikkim's constitutional integration moved from association to equal Statehood with tailored safeguards.
- **Named evidence:** The Thirty-sixth Amendment replaced the Thirty-fifth Amendment's Article 2A/Tenth Schedule structure and inserted Article 371F.
- **Analysis:** The sequence preserved continuity while changing the fundamental constitutional status of the territory.
- **Qualification:** Historical association explains Article 371F but does not reduce present Sikkim to an associate State.

Prelims trap

The old 1974 Tenth Schedule concerned Sikkim; today's anti-defection Tenth Schedule is a different instrument.

Mains use

Use the two-amendment sequence to show constitutional adaptation during integration.

Mini recap

35th = association; 36th = Statehood + 371F.

SESSION 12 - Article 371F: Sikkim's integration settlement

VISUAL FIRST

REPRESENTATION -> Assembly >=30; Parliament may protect population sections
CONTINUITY -> High Court + courts + authorities + old laws
EXECUTIVE -> Governor: peace/equitable advancement under President's directions
ADAPTATION -> President's two-year old-law power + extension power
BOUNDARY -> pre-accession instrument disputes barred, Article 143 preserved

Article 371F is a clause-rich integration code, not merely a minimum Assembly-size rule.

Definition

Article 371F preserves representative, legal and institutional continuity while authorising tailored protection during Sikkim's transition to Statehood.

Answer-grabbing line

Article 371F made Statehood administratively continuous and politically accommodative: institutions survived while Parliament, President and Governor received distinct transitional roles.

Must-write keywords

Assembly minimum; section protection; law continuity; Governor's discretion; presidential adaptation; Article 143

Core explanation and evidence

Clause (a) fixes an Assembly minimum of thirty. Clauses (b)-(e) dealt with the sitting 1974 Assembly and initial parliamentary representation and are historical transition clauses. Clause (f) permits Parliament to protect rights and interests of different population sections through seat allocation and constituency delimitation. Clause (g) gives the Governor special responsibility for peace and equitable social-economic advancement, acting in discretion subject to Presidential directions. Clauses (h)-(k) continue property, the High Court, courts, authorities and existing laws. Clause (l) gave the President a two-year adaptation window for old laws; clause (n) permits extension of an enactment in force in another State with restrictions or modifications. Clause (m) bars court jurisdiction over specified pre-appointed-day treaty disputes but preserves Article 143. The Forty-second and Forty-fourth Amendments changed the duration references in historical clause (c), first extending and then restoring the general Assembly term.

How to write the paragraph

- **Claim:** Article 371F avoided a legal vacuum by combining constitutional succession with selective protection.
- **Named evidence:** The Article expressly continued Sikkim's High Court, subordinate institutions and pre-existing laws after the appointed day.
- **Analysis:** Continuity made integration governable while the representation clause addressed historically distinct population sections.
- **Qualification:** Historical transition clauses should be identified as such; not every printed clause has continuing day-to-day operation.

Prelims trap

Parliament's clause (f) representation power and the Governor's clause (g) responsibility are separate.

Mains use

Structure an answer under representation, continuity, executive responsibility and adaptation.

Mini recap

Statehood -> representation -> continuity -> Governor -> President -> limits.

SESSION 13 - Article 371G: Mizoram

VISUAL FIRST

PARLIAMENTARY ACT in four fields
practices | custom/procedure | customary justice | land
|
does not apply unless Mizoram Assembly resolves
+
pre-commencement Central Acts saved | Assembly ≥ 40

Mizoram has a consent shield similar to Nagaland's, but the texts are not identical.

Definition

Article 371G protects four Mizo subject fields through an Assembly-resolution gateway and fixes a minimum Assembly strength.

Answer-grabbing line

Article 371G constitutionalises negotiated cultural and land protection while preserving pre-Statehood legal continuity.

Must-write keywords

Mizo practices; customary law; customary justice; land; saving proviso; forty members

Core explanation and evidence

The four protected fields are religious or social practices of the Mizos; Mizo customary law and procedure; administration of civil and criminal justice involving decisions according to Mizo customary law; and ownership and transfer of land. Unlike Article 371A, the land phrase does not add 'and its resources.' Parliamentary law in these fields does not apply unless the Mizoram Assembly resolves otherwise. The proviso protects Central Acts already in force in the Union Territory of Mizoram immediately before the Fifty-third Amendment commenced. Clause (b) fixes the Assembly at not less than forty members.

How to write the paragraph

- **Claim:** Article 371G combines prospective consent with continuity of the inherited legal order.
- **Named evidence:** The saving proviso exempts pre-commencement Central Acts from the new Assembly-resolution condition.
- **Analysis:** This avoids a sudden legal vacuum while ensuring local legislative choice for future Parliamentary intervention in protected fields.
- **Qualification:** The shield remains limited to the listed subjects and is not textually identical to Article 371A.

Prelims trap

Only Article 371A expressly adds land 'resources'; Article 371G says ownership and transfer of land.

Mains use

Compare Nagaland and Mizoram through exact textual differences, not the vague phrase 'same autonomy.'

Mini recap

Four fields -> Assembly resolution -> saved old Central Acts -> Assembly 40.

SESSION 14 - Article 371H: Arunachal Pradesh

VISUAL FIRST

LAW AND ORDER MATTER

|

Governor consults Council of Ministers

|

Governor uses individual judgment

|

President may terminate special responsibility

+

Assembly minimum: 30

Consultation remains mandatory even where the Constitution grants individual judgment.

Definition

Article 371H gives the Arunachal Pradesh Governor a bounded special responsibility for law and order and fixes a minimum Assembly strength.

Answer-grabbing line

Article 371H is an expressly carved constitutional discretion, not evidence of a general gubernatorial power to disregard elected government.

Must-write keywords

law and order; consultation; individual judgment; presidential termination; thirty members

Core explanation and evidence

The Governor must consult the Council of Ministers before exercising individual judgment on the covered law-and-order matter. The constitutional text makes the Governor's decision on whether a matter falls within the responsibility final for the stated purpose and prevents challenge merely on the ground that individual judgment should or should not have been used. The President may terminate the responsibility by order when no longer necessary. Clause (b) requires an Assembly of at least thirty members. The exception must remain confined to Article 371H; ordinary gubernatorial action continues under the general constitutional framework.

How to write the paragraph

- **Claim:** Article 371H proves that constitutionally specified discretion must be read narrowly.
- **Named evidence:** The clause names the subject, requires consultation and gives the President a termination power.
- **Analysis:** These textual controls distinguish exceptional responsibility from an unlimited parallel executive.
- **Qualification:** The provision cannot be used to infer a general law-and-order supremacy for Governors in other States.

Prelims trap

Consultation with ministers is required even though the final covered action uses individual judgment.

Mains use

Use Article 371H to distinguish express special responsibility from ordinary Article 163 practice.

Mini recap

Law/order -> consult -> individual judgment -> President may end -> Assembly 30.

SESSION 15 - Article 371I: Goa

VISUAL FIRST

ARTICLE 371I

|

GOA LEGISLATIVE ASSEMBLY

|

NOT LESS THAN 30 MEMBERS

|

NO additional custom, land or Governor-responsibility clause

The shortest provision is also a high-value elimination test.

Definition

Article 371I fixes only a constitutional minimum of thirty members for the Goa Legislative Assembly.

Answer-grabbing line

Article 371I demonstrates that the Article 371 family ranges from elaborate autonomy-related safeguards to a single institutional floor.

Must-write keywords

Goa; minimum thirty; Assembly strength; Fifty-sixth Amendment; narrow provision

Core explanation and evidence

The Constitution (Fifty-sixth Amendment) Act, 1987 inserted Article 371I with effect from 30 May 1987. Its operative content is simply that Goa's Legislative Assembly shall consist of not less than thirty members. It does not create an Assembly-consent shield, regional development board, local-cadre reservation or special Governor responsibility. Its brevity is why it is often used as a close-option trap against Article 371G or 371H.

How to write the paragraph

- **Claim:** Article 371I is institutional calibration rather than substantive autonomy.
- **Named evidence:** The entire operative rule is a minimum Assembly membership requirement.
- **Analysis:** Including it in the same family as Article 371A shows why labels cannot substitute for clause-level reading.
- **Qualification:** The provision does not determine the complete electoral law or present constituency map.

Prelims trap

Goa's minimum is thirty; Mizoram's is forty; Sikkim and Arunachal Pradesh also have thirty-member minima in broader clauses.

Mains use

Use Article 371I as the limiting example when classifying degrees of asymmetry.

Mini recap

Goa -> 56th Amendment -> Assembly not below 30 -> nothing more.

SESSION 16 - Article 371J: Hyderabad-Karnataka/Kalyana Karnataka

VISUAL FIRST

PRESIDENTIAL ORDER -> Governor responsibility
+-- development board + annual Assembly report
+-- equitable development funds
+-- equitable jobs/education/training opportunity
\-- proportionate local seats and identified posts

Article 371J joins development accountability to constitutionally authorised local preference.

Definition

Article 371J permits a Presidential order for regional development and proportionate local reservation in the constitutionally named Hyderabad-Karnataka region.

Answer-grabbing line

Article 371J moves from compensatory spending to opportunity design by linking a development board with education and public-employment access.

Must-write keywords

Ninety-eighth Amendment; Hyderabad-Karnataka; Kalyana Karnataka; development board; birth or domicile; identified posts

Core explanation and evidence

Clause (1) permits assignment to the Governor of responsibility for a separate development board with annual Assembly reporting, equitable allocation of development funds, and equitable opportunity in public employment, education and vocational training. Clause (2) permits an order to reserve a proportion of seats in regional educational and vocational institutions for persons belonging by birth or domicile and to identify State-government or State-controlled posts in the region for proportionate reservation through direct recruitment, promotion or another specified method. The Constitution retains 'Hyderabad-Karnataka'; the State's official current usage is 'Kalyana Karnataka.' Karnataka notifications dated 6 November 2013 operationalised employment reservation and related certificate machinery. The Article itself does not specify a universal percentage.

How to write the paragraph

- **Claim:** Article 371J constitutionalises both distributive investment and access to opportunity.
- **Named evidence:** Clauses (1) and (2) separately authorise equitable funds, educational seats and identified public posts.
- **Analysis:** The combined approach addresses regional backwardness through infrastructure and human-capital channels.
- **Qualification:** Implementation depends on Presidential and State orders; percentages, districts and certificate rules must be date-checked.

Prelims trap

Do not replace the constitutional name in a quotation; write 'Hyderabad-Karnataka (officially Kalyana Karnataka).'

Mains use

Assess outcomes under board accountability, fund equity, local access and administrative mobility.

Mini recap

Board/report -> funds -> opportunity -> seats/posts -> order-based details.

SESSION 17 - Article-family comparison: seven constitutional techniques

VISUAL FIRST

DEVELOPMENT -> 371, 371J
CONSENT SHIELD -> 371A, 371G
ASSEMBLY COMMITTEE -> 371B, 371C
LOCAL OPPORTUNITY -> 371D
INTEGRATION CODE -> 371F
LAW-ORDER RESPONSIBILITY -> 371A, 371H
ASSEMBLY MINIMUM -> 371F, 371G, 371H, 371I

Comparing mechanisms prevents the false proposition that all special provisions grant the same autonomy.

Definition

A functional classification groups the Articles by constitutional technique while preserving State-specific textual differences.

Answer-grabbing line

The Article 371 family is best understood as a toolbox of seven techniques, not a ladder of identical autonomy.

Must-write keywords

development; consent; committee; local opportunity; integration; law and order; Assembly minimum

Core explanation and evidence

Development clauses use a President-Governor-board chain. Consent shields make Assembly resolution a condition for Parliamentary law in listed fields. Committee clauses place regional representatives inside an Assembly. Article 371D uses cadres, local areas and preference/reservation orders. Article 371F manages constitutional succession and continuity. Law-and-order clauses expressly identify an exceptional Governor role, while minimum-strength clauses protect institutional scale. Overlap exists: Article 371J combines development and opportunity; Article 371A combines a shield with transition clauses; Article 371F combines representation, continuity and executive responsibility.

How to write the paragraph

- **Claim:** Functional classification is more accurate than ranking States by 'more' or 'less' special status.
- **Named evidence:** The constitutional actors vary among President, Governor, Parliament and State Assembly.
- **Analysis:** Actor variation changes accountability: consent, reporting, discretion and delegated rule-making are not substitutes.
- **Qualification:** Classification assists recall but must not erase clause-specific language or historical boundaries.

Prelims trap

Only Nagaland and Mizoram have the four-field Parliamentary-law shield; Article 371J reservation is a different mechanism.

Mains use

Build the body around techniques, then use two contrasting States per technique.

Mini recap

Classify -> decode actor -> explain effect -> state limit.

SESSION 18 - Article 370 and Article 35A before 2019

VISUAL FIRST

ACCESSION FIELDS

- > Article 370(1) consultation/concurrence route
- > successive Constitution Application Orders
- > 1954 Order inserts Article 35A
- > J&K Constitution and differentiated arrangements
- > Article 370(3) cessation mechanism

Article 370 was an application-and-transition mechanism, not a declaration of external sovereignty.

Definition

Before 2019, Article 370 mediated application of the Indian Constitution to Jammu and Kashmir; Article 35A came through the 1954 Constitution Application Order.

Answer-grabbing line

Article 370's central constitutional function was mediated application and integration, while Article 35A protected specified permanent-resident laws within that framework.

Must-write keywords

Instrument of Accession; consultation; concurrence; 1954 Order; permanent residents; Article 370(3)

Core explanation and evidence

Article 370 was placed in Part XXI and expressly described as temporary. Article 370(1) structured application of Union powers and constitutional provisions through Presidential orders, using consultation or concurrence depending on the matter. The Constitution (Application to Jammu and Kashmir) Order, 1954 inserted Article 35A, enabling the J&K legislature to define permanent residents and protect laws conferring specified rights concerning public employment, property, settlement, scholarships and aid. Article 35A was not inserted by an Article 368 constitutional amendment. The J&K Constituent Assembly dissolved in 1957 without recommending cessation. The later constitutional dispute concerned the continued reach of Article 370(3), not whether J&K was internationally sovereign.

How to write the paragraph

- **Claim:** The pre-2019 system combined formal Union membership with a distinctive consent-based application pathway.
- **Named evidence:** Successive Presidential orders, especially the 1954 Order, extended large parts of the Constitution while also inserting Article 35A.
- **Analysis:** The mechanism progressively integrated legal fields but preserved a negotiated role for State concurrence.
- **Qualification:** Describing the arrangement as either complete independence or complete non-integration is historically and legally inaccurate.

Prelims trap

Article 35A came through the 1954 Presidential Order, not the Thirty-fifth Amendment.

Mains use

Explain the legal mechanism before debating its federal legitimacy.

Mini recap

Accession -> Article 370 orders -> 1954/35A -> 1957 issue -> 370(3).

SESSION 19 - The 2019 instruments and their distinct legal effects

VISUAL FIRST

5 AUG 2019: C.O. 272 -> Constitution applied comprehensively; 1954 Order superseded
+ Parliament resolutions while President's Rule operated
6 AUG 2019: C.O. 273 -> Article 370 ceased to operate except modified clause (1)
31 OCT 2019: Reorganisation Act -> J&K UT + Ladakh UT

Order, recommendation/resolution, declaration and statute performed different legal work.

Definition

The 2019 change occurred through multiple constitutional and statutory instruments, not through one ordinary statement of 'abrogation.'

Answer-grabbing line

Constitutional accuracy requires disaggregating 2019: C.O. 272 altered application and interpretation, C.O. 273 produced inoperability, and the Reorganisation Act changed territorial status.

Must-write keywords

C.O. 272; C.O. 273; President's Rule; Article 370(3); Reorganisation Act; 31 October 2019

Core explanation and evidence

C.O. 272 of 5 August 2019 applied all provisions of the Constitution to J&K and superseded the 1954 Order, thereby ending Article 35A's operative basis. Its paragraph 2 used Article 367 to read the Article 370(3) reference to the Constituent Assembly as the Legislative Assembly. Parliament was then exercising State legislative functions during President's Rule. C.O. 273 of 6 August declared that all clauses of Article 370 would cease to operate except the substituted clause (1). The Jammu and Kashmir Reorganisation Act, 2019, effective 31 October, created the Union Territory of J&K with a legislature and Ladakh without one. These instruments must be kept distinct from an Article 368 amendment.

How to write the paragraph

- **Claim:** The constitutional result depended on a sequence of legally different instruments.
- **Named evidence:** C.O. 272, Parliamentary action, C.O. 273 and the Reorganisation Act each had a separate formal source and effect.
- **Analysis:** Disaggregation permits precise judicial review and prevents a political slogan from replacing legal reasoning.
- **Qualification:** The Supreme Court later invalidated the Article 367 substitution to the stated extent while sustaining the result through other Article 370 powers.

Prelims trap

Article 370 remains printed in the Constitution; it was rendered inoperative, not textually deleted.

Mains use

Present a four-row instrument table before evaluating federal consent.

Mini recap

272 -> Parliament -> 273 -> Reorganisation -> commencement.

SESSION 20 - In re Article 370 (2023) and current status

VISUAL FIRST

SUPREME COURT, 11 DEC 2023

- +-- Article 370 temporary; no separate post-accession sovereignty
- +-- President's 370(3) power survived dissolution of Constituent Assembly
- +-- Article 367 substitution ultra vires to stated extent
- +-- constitutional result/C.O.273 upheld through valid powers
- +-- Ladakh UT creation upheld
- \-- J&K State-to-UT issue not finally decided after Union assurance

The judgment upheld the result but did not validate every reasoning route or finally decide every reorganisation issue.

Definition

In re Article 370, 2023 INSC 1058, is the controlling Constitution Bench decision on the 2019 constitutional changes.

Answer-grabbing line

The Court's holding is best stated as result-validating but route-sensitive: it rejected the Article 367 shortcut while sustaining inoperability through Article 370's own structure.

Must-write keywords

temporary; no separate sovereignty; Article 367 ultra vires; C.O. 273 valid; Statehood assurance; Ladakh

Core explanation and evidence

The Court held Article 370 temporary and found no continuing internal sovereignty distinct from other States. It held that the President's Article 370(3) power survived the J&K Constituent Assembly's dissolution. Paragraph 2 of C.O. 272, insofar as it amended Article 367 to alter Article 370's character, was ultra vires; however, comprehensive application under Article 370(1)(d) and the Article 370(3) declaration sustained the constitutional result, and C.O. 273 was valid. The Court upheld carving Ladakh into a Union Territory. It did not finally adjudicate the challenge to converting J&K into a Union Territory after the Union assured restoration of Statehood. It directed Assembly elections by 30 September 2024; elections occurred in September-October 2024. As checked on 7 September 2026, J&K remains a Union Territory with a legislature and Ladakh a Union Territory without one; no Statehood or Sixth Schedule change has been enacted.

How to write the paragraph

- **Claim:** The 2023 judgment closed the operability dispute but preserved an important federal-status qualification.
- **Named evidence:** It upheld C.O. 273 and Ladakh's creation while declining final adjudication of J&K's State-to-UT conversion after the Union assurance.
- **Analysis:** This separates settled doctrine on Article 370 from the continuing political and constitutional question of Statehood.
- **Qualification:** The assurance was recorded without a judicial deadline for restoration.

Prelims trap

Do not say the Court upheld the Article 367 substitution; it held that route ultra vires to the stated extent.

Mains use

Write separate headings for holdings, unresolved issue and date-stamped present status.

Mini recap

Temporary -> power survived -> shortcut invalid -> result valid -> Statehood unresolved.

SESSION 21 - Judicial controls: P. Sambamurthy and R.C. Poudyal

VISUAL FIRST

SPECIAL PROVISION

```
|
+-- P. Sambamurthy: asymmetry cannot destroy effective judicial review
|
\-- R.C. Poudyal: historical representation may justify tailored departure
    but remains constitutionally reasoned and reviewable
```

Asymmetry is constitutionally protected but not insulated from Basic Structure and equality analysis.

Definition

Judicial control tests special provisions by their text, historical purpose and compatibility with basic constitutional commitments.

Answer-grabbing line

Part XXI authorises difference, not constitutional impunity: courts preserve both accommodation and the rule of law.

Must-write keywords

P. Sambamurthy; rule of law; judicial review; R.C. Poudyal; historical accommodation; equality

Core explanation and evidence

In *P. Sambamurthy v. State of Andhra Pradesh* (1987), the Supreme Court struck down Article 371D(5), including its proviso, because the State Government could modify or annul a tribunal's final order, making judicial review ineffective and violating the rule of law/basic structure. In *R.C. Poudyal v. Union of India* (1993), the majority sustained the core historically tailored representational arrangement associated with Sikkim's integration, treating context as relevant to equality analysis. The case should not be cited as blanket immunity for any reservation or as proof that Article 371F displaces all equality norms.

How to write the paragraph

- **Claim:** Courts distinguish legitimate accommodation from destruction of constitutional accountability.
- **Named evidence:** Sambamurthy invalidated executive veto over adjudication; Poudyal accepted historically grounded representation within Sikkim's settlement.
- **Analysis:** Together the cases show that asymmetry is evaluated functionally: what problem it addresses and what constitutional safeguard it preserves or damages.
- **Qualification:** Case holdings must be tied to the challenged clause and cannot be expanded into universal propositions.

Prelims trap

Sambamurthy did not strike down Article 371D as a whole.

Mains use

Use one case for the limit and one for the justificatory role of history.

Mini recap

Accommodation survives -> executive destruction of review does not.

SESSION 22 - Article 371 provisions versus Fifth and Sixth Schedules

VISUAL FIRST

PART XXI: State-specific clause

!=

FIFTH SCHEDULE: Scheduled Areas + Governor/President/TAC safeguards

!=

SIXTH SCHEDULE: autonomous district/regional councils in four NE States

Shared protective purpose does not erase distinct location, territory, actor or power.

Definition

Articles 371-371J are State-specific Part XXI rules; Fifth and Sixth Schedule mechanisms operate under Article 244 in Part X.

Answer-grabbing line

Constitutional asymmetry has multiple legal architectures: consent shields, regional duties and territorial self-government are not interchangeable.

Must-write keywords

Part XXI; Article 244; Scheduled Areas; Tribes Advisory Council; autonomous district council; bounded cross-link

Core explanation and evidence

The Fifth Schedule concerns Scheduled Areas in States other than the four Sixth Schedule States and uses Presidential declaration, Governor reporting/regulation and a Tribes Advisory Council. The Sixth Schedule creates autonomous district and regional councils with specified legislative, judicial, executive and fiscal powers in Assam, Meghalaya, Tripura and Mizoram. Article 371B's Assam committee references Sixth Schedule areas but remains an Assembly committee. Articles 371A and 371G use Assembly consent for Parliamentary laws in defined fields; they are not councils. This topic uses these facts only to prevent confusion; detailed Scheduled/Tribal Areas doctrine remains with Topic 26.

How to write the paragraph

- **Claim:** The constitutional question is not whether a region is 'special' but which legal mechanism governs it.
- **Named evidence:** Part XXI and Article 244 use different institutions, territorial triggers and decision-makers.
- **Analysis:** Correct classification determines whether the relevant power belongs to an Assembly, Governor, President, Parliament or autonomous council.
- **Qualification:** Regions may simultaneously interact with more than one protective framework, but each power retains its own legal source.

Prelims trap

Mizoram has both Article 371G and Sixth Schedule areas; the two mechanisms do not merge.

Mains use

Use a four-column comparison: location, territorial unit, actor and legal effect.

Mini recap

371 family = State clauses; Fifth = guardianship; Sixth = councils.

SESSION 23 - Equality, representation and local preference

VISUAL FIRST

FORMAL EQUALITY: same general constitutional order
+
SUBSTANTIVE EQUALITY: tailored response to disadvantage/history
|
VALIDITY TEST -> text + purpose + nexus + proportionality + review
|
RISK -> insider-outsider exclusion, frozen categories, weak data

Asymmetry can advance equality, but implementation must remain evidence-based and reviewable.

Definition

Substantive federal equality permits differentiated treatment where a constitutional purpose and rationally designed mechanism address distinct conditions.

Answer-grabbing line

Articles 371D, 371F and 371J show that equality may require calibrated difference, but not unmeasured permanence or opaque exclusion.

Must-write keywords

substantive equality; regional imbalance; historical integration; local preference; proportionality; periodic review

Core explanation and evidence

Article 371D targets opportunity across parts of Andhra Pradesh and Telangana; Article 371J targets the Kalyana Karnataka region; Article 371F permits protection of different sections of Sikkim's population. Their constitutional source answers the competence question, but good governance still requires transparent criteria, reliable data, fair certificates, review mechanisms and protection of minorities within the protected region. Single citizenship is not negated by constitutionally authorised local preference; nor does constitutional authorisation make every implementing classification automatically reasonable.

How to write the paragraph

- **Claim:** Differentiation is constitutionally defensible when it remedies a defined disadvantage through a tailored mechanism.
- **Named evidence:** Articles 371D and 371J expressly link regional classification to equitable opportunity rather than to separate citizenship.
- **Analysis:** A clear nexus can convert formal territorial difference into substantive equality.
- **Qualification:** Benefits can be captured by local elites or freeze outdated boundaries unless outcomes and exclusions are periodically audited.

Prelims trap

Regional preference under a specific constitutional order does not create State citizenship.

Mains use

Balance constitutional purpose with proportionality, data, internal minorities and review.

Mini recap

Purpose -> classification -> mechanism -> outcomes -> safeguards.

SESSION 24 - Implementation, institutions and date-sensitive controls

VISUAL FIRST

CONSTITUTIONAL TEXT

- > Presidential order / Parliamentary statute
- > State rules, boards, certificates and cadre orders
- > budgets and administration
- > judicial review and legislative reporting
- > dated outcome audit

A special provision becomes real only through legally traceable implementation.

Definition

Implementation analysis separates the Constitution's enabling rule from the order, statute, notification, institution and current administrative practice that operationalise it.

Answer-grabbing line

The success of asymmetric federalism is measured not by the presence of Article numbers but by lawful instruments, transparent institutions and demonstrable outcomes.

Must-write keywords

legal hierarchy; operative order; annual report; current status; implementation gap; outcome audit

Core explanation and evidence

For Article 371, ask whether a Presidential order assigned responsibility and whether reports are laid. For 371D, identify the current State-specific Presidential order and its cadre schedule. For 371J, separate the constitutional authorisation from 2013 employment, admission and eligibility-certificate machinery and from the current Kalyana Karnataka Region Development Board. For 371A/371G, identify whether a Parliamentary Act falls within the protected subject and whether the Assembly adopted it. For 371C, distinguish the Presidential order, Governor report and Union direction. Every volatile assertion should carry an 'as of' date; absence of a located notification must be reported as a source limitation, not converted into a factual claim.

How to write the paragraph

- **Claim:** Implementation is a chain of legal authority, not an administrative footnote.
- **Named evidence:** The Constitution repeatedly uses phrases such as 'President may by order,' 'Parliament may by law' and 'Assembly by a resolution.'
- **Analysis:** Tracing the chain identifies both democratic accountability and the point at which a policy may fail.
- **Qualification:** A constitutional enabling power can remain valid even when a particular institution is dormant, replaced or abolished.

Prelims trap

Do not infer current institutional operation from the continued presence of constitutional text.

Mains use

Date-stamp the instrument and distinguish enabling law from implementation outcome.

Mini recap

Text -> instrument -> institution -> practice -> review -> current date.

SESSION 25 - Mains synthesis and reform framework

VISUAL FIRST

DEFINE ASYMMETRY

- > CLASSIFY the mechanism
- > NAME State + Article + amendment + actor
- > EXPLAIN operation
- > EVALUATE integration/equality/accountability
- > QUALIFY history, current status and judicial limits
- > REFORM through data, reports, participation and review

The answer spine converts a long constitutional list into a reasoned federalism argument.

Definition

A marks-worthy answer uses clause-specific evidence to evaluate whether differentiated arrangements produce integration, representation and equitable opportunity.

Answer-grabbing line

Asymmetry strengthens unity when difference is constitutionally bounded, democratically mediated, transparently implemented and judicially reviewable.

Must-write keywords

constitutional accommodation; actor-mechanism map; named evidence; implementation; internal minorities; qualified conclusion

Core explanation and evidence

Begin by defining asymmetric federalism. Classify the relevant provisions instead of listing them chronologically unless the question asks history. For each example name the State, Article, amendment, actor and protected interest. Use named evidence: P. Sambamurthy for rule-of-law limits, R.C. Poudyal for historically contextual representation, and In re Article 370 for the current J&K legal position. Evaluate both gains - peace, identity protection, regional opportunity and administrative continuity - and risks - opaque discretion, stale criteria, weak reporting, elite capture and insider-outsider conflict. Recommend publication of annual reports, current orders, outcome indicators, grievance routes, participatory review and protection of minorities within protected regions.

How to write the paragraph

- **Claim:** The strongest defence of asymmetry is accountable performance, not constitutional symbolism.
- **Named evidence:** Articles 371 and 371J require or contemplate reporting and equitable allocation, while cases insist on rule of law and review.
- **Analysis:** Transparency connects the founding bargain to present distributive outcomes and makes special treatment democratically defensible.
- **Qualification:** Uniform national standards remain necessary where the Constitution has not created a specific exception.

Prelims trap

A conclusion praising diversity without identifying the legal mechanism earns little credit.

Mains use

Use the sequence definition -> classification -> evidence -> analysis -> qualification -> reform.

Mini recap

Difference + purpose + accountability + review = legitimate asymmetry.

BASIC MCQS / REMEDIATION

Original MCQs - exactly 32; key sequence ABCD repeated eight times

MCQ 1. Part XXI is best described as containing:

A. Temporary, transitional and special provisions B. Only emergency provisions C. Only inter-State trade rules D. Only Scheduled Area administration

Answer: A.

- **Option A - Correct:** Part XXI is formally titled Temporary, Transitional and Special Provisions.
- **Option B - Incorrect:** Article 352 emergency rules are in Part XVIII, not Part XXI.
- **Option C - Incorrect:** Inter-State trade is principally in Part XIII.
- **Option D - Incorrect:** Scheduled Areas are principally under Part X and Article 244.

Examiner trap 1: The word 'special' does not make Part XXI a catalogue of tribal areas alone.

MCQ 2. Under Article 371, the Governor's special responsibility arises through:

A. A State Cabinet resolution B. An order of the President C. A Supreme Court direction D. An automatic constitutional convention

Answer: B.

- **Option A - Incorrect:** A Cabinet may advise on administration but cannot create the Article 371 responsibility.
- **Option B - Correct:** Article 371(2) expressly authorises the President to provide for the responsibility by order.
- **Option C - Incorrect:** Courts review legality; they do not constitute Article 371 development boards.
- **Option D - Incorrect:** No convention can replace the required Presidential order.

Examiner trap 2: Do not convert an enabling Presidential power into an automatic gubernatorial power.

MCQ 3. Which is the complete Article 371 responsibility set?

A. Boards and police control B. Land shield and Assembly minimum C. Boards, annual reports, equitable development funds, training and State-service opportunity D. Autonomous councils and taxation

Answer: C.

- **Option A - Incorrect:** Police control is not part of Article 371's Maharashtra-Gujarat text.
- **Option B - Incorrect:** The land shield and Assembly minima belong to other lettered Articles.
- **Option C - Correct:** The clause links boards and annual reporting with equitable expenditure and adequate training/employment opportunity.
- **Option D - Incorrect:** Autonomous district councils arise under the Sixth Schedule, not Article 371.

Examiner trap 3: The annual Assembly report is an express component, not an optional good-governance suggestion.

MCQ 4. Article 371A's Assembly-resolution shield covers which set?

A. All Union List laws B. Only land transfer C. Only customary civil disputes D. Naga practices, customary law/procedure, customary justice, and land with resources

Answer: D.

- **Option A - Incorrect:** Nagaland has no general veto over all Union List legislation.
- **Option B - Incorrect:** Land and resources are one of four protected fields, not the entire shield.
- **Option C - Incorrect:** The justice field includes civil and criminal justice involving customary-law decisions.
- **Option D - Correct:** All four enumerated fields are required for the complete statement.

Examiner trap 4: The justice limb is qualified by decisions according to Naga customary law.

MCQ 5. Which phrase uniquely distinguishes Article 371A's land limb from Article 371G?

A. Land and its resources B. Land revenue administration C. Agricultural tenancy only D. Forest administration only

Answer: A.

- **Option A - Correct:** Article 371A expressly says ownership and transfer of land and its resources.
- **Option B - Incorrect:** The clause is not framed as a land-revenue power.
- **Option C - Incorrect:** Its protection is not confined to agricultural tenancy.
- **Option D - Incorrect:** Forest administration is not the constitutional wording of the fourth limb.

Examiner trap 5: Do not silently import the words 'and its resources' into Article 371G.

MCQ 6. For Article 371A's conditional law-and-order responsibility, the Governor:

A. Acts without consulting anyone B. Consults the Council of Ministers, then exercises individual judgment C. Requires a Nagaland Assembly resolution for every action D. Acts only on a Supreme Court reference

Answer: B.

- **Option A - Incorrect:** The text expressly requires ministerial consultation.
- **Option B - Correct:** This option reproduces the specified consultation-plus-individual-judgment structure.
- **Option C - Incorrect:** Assembly resolution controls the four-field Parliamentary-law shield, not each law-and-order act.
- **Option D - Incorrect:** No judicial reference is a precondition in the clause.

Examiner trap 6: Express individual judgment is bounded by subject and consultation.

MCQ 7. The base constitutional period for the special Tuensang administration was:

A. Five years from 1957 B. Until Parliament repealed Article 371A C. Ten years from Nagaland's formation, extendable by notified action D. Permanent from 1 December 1963

Answer: C.

- **Option A - Incorrect:** The Constitution did not use a five-year period from Constituent Assembly dissolution.
- **Option B - Incorrect:** No Parliamentary repeal trigger defines clause (2).
- **Option C - Correct:** Article 371A(2) states ten years from State formation or a further notified period on recommendation.
- **Option D - Incorrect:** The base period was expressly time-bound, not automatically permanent.

Examiner trap 7: The ten-year base ran from 1 December 1963 to 30 November 1973.

MCQ 8. Article 371B primarily authorises:

A. A Governor's law-and-order discretion B. A land-resource consent shield C. A regional development board D. A committee within the Assam Legislative Assembly

Answer: D.

- **Option A - Incorrect:** The law-and-order discretion belongs to Articles 371A and 371H in their specified terms.
- **Option B - Incorrect:** The subject-specific shield belongs to Nagaland and Mizoram.
- **Option C - Incorrect:** Regional development boards belong to Articles 371 and 371J.
- **Option D - Correct:** The President may create an Assam Assembly committee containing specified tribal-area MLAs and others.

Examiner trap 8: The Assam committee is not a Sixth Schedule autonomous council.

MCQ 9. Who must report on Manipur's Hill Areas administration?

A. The Governor to the President annually or when required B. The Chief Minister to Parliament every six months C. The Hill Areas Committee to the Supreme Court D. The President to the Governor annually

Answer: A.

- **Option A - Correct:** Article 371C(2) specifies this Governor-to-President reporting channel.
- **Option B - Incorrect:** The Constitution contains no such six-month parliamentary report.
- **Option C - Incorrect:** The committee is not made answerable to the Supreme Court by Article 371C.
- **Option D - Incorrect:** The reporting direction is reversed in this option.

Examiner trap 9: Article 371C combines the report with possible Union directions to the State.

MCQ 10. The clearest distinction between Articles 371B and 371C is that:

A. Only 371B concerns an Assembly committee B. 371C adds Governor reporting/special responsibility and Union directions C. 371B creates autonomous legislative power D. 371C applies to Assam's Sixth Schedule areas

Answer: B.

- **Option A - Incorrect:** Both Articles concern committees inside State Assemblies.
- **Option B - Correct:** The Manipur clause adds the reporting, responsibility and direction architecture.
- **Option C - Incorrect:** Article 371B does not create an autonomous legislature.
- **Option D - Incorrect:** Article 371C applies to Presidentially declared Hill Areas in Manipur.

Examiner trap 10: Both use committees, but only Manipur's text adds the executive accountability chain.

MCQ 11. Article 371D principally seeks:

A. A common High Court B. A minimum Assembly size C. Equitable public-employment and educational opportunity across State regions D. A customary-law veto

Answer: C.

- **Option A - Incorrect:** High Court organisation is governed elsewhere in the Constitution.
- **Option B - Incorrect:** Assembly minima appear in Articles 371F, 371G, 371H and 371I.
- **Option C - Correct:** Clause (1) expressly identifies public employment and education.
- **Option D - Incorrect:** The consent shield belongs to Articles 371A and 371G.

Examiner trap 11: The aim is regional opportunity, implemented through detailed orders.

MCQ 12. Under Article 371D(2), local preference may be linked to:

A. Religion alone B. Language alone C. Property ownership alone D. Residence or study for the period specified in the Presidential order

Answer: D.

- **Option A - Incorrect:** Religion is not the Article 371D local-candidate criterion.
- **Option B - Incorrect:** Language may matter administratively but is not the specified preference trigger.
- **Option C - Incorrect:** Property ownership is not the constitutional criterion.
- **Option D - Correct:** The clause expressly allows residence-or-study periods to be specified.

Examiner trap 12: Do not replace the order-defined residence/study test with a generic domicile slogan.

MCQ 13. Section 97 of the Andhra Pradesh Reorganisation Act, 2014 did what?

A. Adapted Article 371D for Andhra Pradesh and Telangana B. Repealed Article 371D C. Moved Article 371D to Part III D. Inserted Article 371J

Answer: A.

- **Option A - Correct:** Section 97 changed the heading and relevant clauses for both successor States.
- **Option B - Incorrect:** The Article continues to operate.
- **Option C - Incorrect:** The provision remains in Part XXI.
- **Option D - Incorrect:** Article 371J came through the Ninety-eighth Amendment.

Examiner trap 13: Bifurcation adapted territorial application; it did not abolish the opportunity framework.

MCQ 14. Which statement correctly combines tribunal history?

A. The tribunal is constitutionally mandatory forever B. P. Sambamurthy invalidated clause (5); the tribunal was later abolished under clause (8) C. Every clause of Article 371D was struck down D. The tribunal currently replaces both High Courts

Answer: B.

- **Option A - Incorrect:** Clause (8) expressly permits abolition.
- **Option B - Correct:** The 1987 judgment and 2020 abolition are distinct, correctly sequenced events.
- **Option C - Incorrect:** Sambamurthy targeted clause (5), not the entire Article.
- **Option D - Incorrect:** No current tribunal displaces both constitutional High Courts.

Examiner trap 14: Judicial invalidation of executive veto and administrative abolition are different legal events.

MCQ 15. Article 371E:

A. Creates local cadres in Telangana B. Automatically establishes a university C. Enables Parliament by law to establish a University in Andhra Pradesh D. Creates the Andhra Pradesh Administrative Tribunal

Answer: C.

- **Option A - Incorrect:** Local cadres are an Article 371D order mechanism.
- **Option B - Incorrect:** The wording is enabling, not self-executing.
- **Option C - Correct:** This reproduces the Article's actor, vehicle and territorial scope.
- **Option D - Incorrect:** Tribunal authority was in Article 371D(3).

Examiner trap 15: Proximity to Article 371D does not make 371E a reservation clause.

MCQ 16. Which Sikkim sequence is correct?

A. 36th Amendment association; 35th Statehood B. 35th inserted Article 371F; 36th inserted Article 2A C. Both amendments merely changed Assembly size D. 35th created association; 36th created Statehood and Article 371F

Answer: D.

- **Option A - Incorrect:** The amendment functions are reversed.
- **Option B - Incorrect:** Article 371F came through the Thirty-sixth Amendment.
- **Option C - Incorrect:** The changes transformed constitutional status, not merely Assembly strength.
- **Option D - Correct:** This is the correct two-stage sequence.

Examiner trap 16: The old Tenth Schedule of 1974 is unrelated to today's anti-defection Schedule.

MCQ 17. Which is a continuing core feature of Article 371F?

A. Continuity of pre-existing laws until competent alteration B. A perpetual four-year Assembly term C. A general Sikkim veto over Parliamentary law D. A local-cadre order identical to Article 371D

Answer: A.

- **Option A - Correct:** Clause (k) continues existing laws subject to later competent change.
- **Option B - Incorrect:** Clause (c) addressed the transitional sitting Assembly and is historical.
- **Option C - Incorrect:** Article 371F contains no general Parliamentary-law veto.
- **Option D - Incorrect:** Its integration design differs from Article 371D.

Examiner trap 17: Separate continuing clauses from appointed-day transition clauses.

MCQ 18. Under Article 371F(g), the Governor's discretion is:

A. Controlled by the Sikkim High Court alone B. For peace and equitable advancement, subject to Presidential directions C. For every State subject without limit D. Dependent on an Assembly resolution

Answer: B.

- **Option A - Incorrect:** Judicial review remains possible, but the clause names Presidential directions.
- **Option B - Correct:** This option states the specified purpose and control.
- **Option C - Incorrect:** The responsibility is not a general parallel government.
- **Option D - Incorrect:** No Assembly-resolution trigger appears in clause (g).

Examiner trap 18: The Governor's role is purpose-specific and direction-bound.

MCQ 19. R.C. Poudyal is most safely used for which proposition?

A. All communal representation is valid B. Article 371F is beyond judicial review C. Historically tailored Sikkim representation was largely sustained in context D. Sikkim retained external sovereignty

Answer: C.

- **Option A - Incorrect:** The judgment does not validate all communal electorates.
- **Option B - Incorrect:** Special provisions remain reviewable.
- **Option C - Correct:** The majority's contextual approach supports this bounded statement.
- **Option D - Incorrect:** Statehood did not preserve external sovereignty.

Examiner trap 19: Use the holding contextually; do not turn historical accommodation into a universal exemption.

MCQ 20. Article 371G includes:

A. A Governor law-and-order responsibility B. A development board C. A minimum of thirty Assembly members D. A four-field shield, saved pre-commencement Central Acts, and minimum forty members

Answer: D.

- **Option A - Incorrect:** The express law-and-order role belongs to Article 371H, and conditionally 371A.
- **Option B - Incorrect:** Development boards belong to 371 and 371J.
- **Option C - Incorrect:** Mizoram's minimum is forty, not thirty.
- **Option D - Correct:** This captures both the shield, saving proviso and Assembly floor.

Examiner trap 20: The saving proviso is a key difference from an oversimplified Nagaland comparison.

MCQ 21. Article 371H's special responsibility concerns:

A. Law and order in Arunachal Pradesh B. Mizo customary law C. Goa Assembly elections D. Karnataka development allocation

Answer: A.

- **Option A - Correct:** The Governor's bounded responsibility is expressly for law and order.
- **Option B - Incorrect:** Mizo customary protection is Article 371G.
- **Option C - Incorrect:** Goa's Article 371I only fixes Assembly minimum.
- **Option D - Incorrect:** Karnataka development is Article 371J.

Examiner trap 21: The Governor must consult ministers before using individual judgment.

MCQ 22. Article 371I is correctly paired with:

A. Mizoram - forty-member minimum B. Goa - Assembly not less than thirty C. Sikkim - old-law adaptation D. Arunachal Pradesh - law and order

Answer: B.

- **Option A - Incorrect:** That is Article 371G.
- **Option B - Correct:** This is the complete core content of Article 371I.
- **Option C - Incorrect:** That is part of Article 371F.
- **Option D - Incorrect:** That is Article 371H.

Examiner trap 22: Do not inflate Article 371I beyond its narrow Assembly-size rule.

MCQ 23. Article 371J(2) authorises an order concerning:

A. A general veto over all Central laws B. Only annual budget reporting C. Regional educational seats and identified State-controlled posts D. Creation of a Sixth Schedule council

Answer: C.

- **Option A - Incorrect:** No such veto appears in Article 371J.
- **Option B - Incorrect:** Annual reporting is only one component of clause (1).
- **Option C - Correct:** Clause (2) expressly addresses proportionate seat and post reservation.
- **Option D - Incorrect:** The Sixth Schedule is a separate constitutional mechanism.

Examiner trap 23: Reservation details come through the order; the Constitution does not itself fix one quota.

MCQ 24. Which statement on Article 371J is correct?

A. It constitutionally fixes a 70 per cent quota B. It applies to all of Karnataka identically C. It uses only place of birth and forbids domicile D. It authorises proportionate reservation, leaving details to orders

Answer: D.

- **Option A - Incorrect:** No universal percentage appears in Article 371J.
- **Option B - Incorrect:** The special focus is the named region.
- **Option C - Incorrect:** The text permits belonging by birth or domicile.
- **Option D - Correct:** This captures the enabling constitutional design.

Examiner trap 24: Never import a current rule percentage into the constitutional text.

MCQ 25. Which chronology begins correctly?

A. 7th -> 13th -> 22nd -> 27th -> 32nd B. 13th -> 7th -> 32nd -> 22nd -> 27th C. 22nd -> 13th -> 7th -> 32nd -> 27th D. 32nd -> 27th -> 22nd -> 13th -> 7th

Answer: A.

- **Option A - Correct:** The sequence follows 1956, 1962, 1969, 1971 and 1973.
- **Option B - Incorrect:** This puts 1962 before 1956 and disrupts the later order.
- **Option C - Incorrect:** The first three amendments are reversed.
- **Option D - Incorrect:** This is descending, not ascending, chronology.

Examiner trap 25: Chronology questions often hide the 1956 substitution of Article 371.

MCQ 26. Articles 371-371J presently concern how many States?

A. Ten B. Twelve C. Fourteen D. All north-eastern States only

Answer: B.

- **Option A - Incorrect:** The list is longer than ten because Maharashtra, Gujarat, AP, Telangana, Sikkim, Goa and Karnataka join the NE States.
- **Option B - Correct:** The constitutional family concerns twelve States.
- **Option C - Incorrect:** No fourteen-State list exists in the Article family.
- **Option D - Incorrect:** Several covered States are outside the Northeast.

Examiner trap 26: Count States, not Article labels: 371D covers two States and 371 covers two.

MCQ 27. Which comparison of Articles 371A and 371G is exact?

A. Both include land and its resources B. Both have a Governor law-order clause C. Both have four-field shields; only 371A expressly adds resources D. Both save all future Central Acts automatically

Answer: C.

- **Option A - Incorrect:** Article 371G's land limb omits 'and its resources.'
- **Option B - Incorrect:** Article 371G has no matching Governor law-order clause.
- **Option C - Correct:** This captures the shared structure and textual difference.
- **Option D - Incorrect:** Future covered laws require the relevant Assembly resolution.

Examiner trap 27: Similarity is not identity; reproduce the resource and saving-proviso differences.

MCQ 28. Why is 'all Article 371 provisions grant autonomy' incorrect?

A. Because none are constitutional B. Because all are temporary C. Because only Parliament implements them D. Because mechanisms range from development duties to Assembly minima

Answer: D.

- **Option A - Incorrect:** They are constitutional provisions in Part XXI.
- **Option B - Incorrect:** Some contain historical transitions, but the family is not uniformly temporary.
- **Option C - Incorrect:** Actors include President, Governor, Parliament and State Assembly.
- **Option D - Correct:** The wide mechanism range defeats the blanket label.

Examiner trap 28: Classify the clause before describing its federal effect.

MCQ 29. The current legal status of Article 370 is best stated as:

A. Printed in the Constitution but rendered inoperative through the 2019 process B. Repealed by the Ninety-eighth Amendment C. Fully operative after the 2023 judgment D. Replaced by Article 371J

Answer: A.

- **Option A - Correct:** This distinguishes textual presence from present operability.
- **Option B - Incorrect:** The Ninety-eighth Amendment inserted Article 371J.
- **Option C - Incorrect:** The Court upheld the inoperative result.
- **Option D - Incorrect:** Article 371J concerns Karnataka.

Examiner trap 29: Use 'rendered inoperative,' not 'deleted from the Constitution.'

MCQ 30. Which sequence correctly distinguishes the 2019 instruments?

A. Reorganisation Act inserted Article 35A B. C.O.272 applied the Constitution; C.O.273 rendered Article 370 inoperative C. C.O.273 created Telangana D. C.O.272 was a constitutional amendment under Article 368

Answer: B.

- **Option A - Incorrect:** Article 35A came from the 1954 Order and ceased with its supersession.
- **Option B - Correct:** This states the separate principal effects of the two orders.
- **Option C - Incorrect:** Telangana was created under the 2014 reorganisation statute.
- **Option D - Incorrect:** C.O.272 was a Presidential order under the Article 370 framework.

Examiner trap 30: Do not merge Presidential orders, parliamentary resolutions and the reorganisation statute.

MCQ 31. Which is an accurate holding of In re Article 370 (2023)?

A. It imposed a fixed Statehood deadline B. It upheld every part of the Article 367 route C. It held Article 370 temporary and sustained C.O.273 while rejecting the substitution route to the stated extent D. It invalidated Ladakh's Union Territory status

Answer: C.

- **Option A - Incorrect:** The Court recorded an assurance, not a judicial Statehood deadline.
- **Option B - Incorrect:** The Article 367 substitution was held ultra vires to the stated extent.
- **Option C - Correct:** This captures both the main result and route qualification.
- **Option D - Incorrect:** The Court upheld Ladakh's creation.

Examiner trap 31: Result-validating does not mean every intermediate reasoning device was valid.

MCQ 32. Which boundary statement is correct?

A. Article 371A is the Fifth Schedule B. Article 371B creates a Sixth Schedule council C. Article 371J belongs to special provisions for classes D. Part XXI State clauses, Fifth/Sixth Schedules and class protections have separate owners and mechanisms

Answer: D.

- **Option A - Incorrect:** Article 371A is a Part XXI State-specific clause.
- **Option B - Incorrect:** Article 371B creates an Assembly committee.
- **Option C - Incorrect:** Article 371J concerns Karnataka regional development and opportunity.
- **Option D - Correct:** This preserves location, ownership and legal-mechanism boundaries.

Examiner trap 32: Cross-link for comparison, but do not import Topic 26 or Topic 53 doctrine wholesale.

PYQS AND ANSWER PRACTICE

Verified PYQ 1 - UPSC CSE Mains 2025, GS Paper II, Question 4

Official-paper wording: Discuss the nature of Jammu and Kashmir Legislative Assembly after the Jammu and Kashmir Reorganization Act, 2019. Briefly describe the powers and functions of the Assembly of the Union Territory of Jammu and Kashmir. **10 marks | 150 words | Primary owner: Topic 25; bounded direct application here**

Model answer: The post-2019 Jammu and Kashmir Assembly is the elected legislature of a Union Territory, not of a State. The Jammu and Kashmir Reorganisation Act, 2019 created J&K with a legislature and Ladakh without one. Subject to the Act, the Assembly can legislate for J&K on permitted State List and Concurrent List matters; public order and police remain excluded. It votes the budget and grants, authorises expenditure, debates policy and holds the Chief Minister-led Council of Ministers politically accountable.

Its authority is constitutionally weaker than a State legislature because Parliament retains overriding legislative competence and the Lieutenant Governor/Union framework has specified powers. Elections were held in September-October 2024. As of 7 September 2026, Statehood has not been restored. *In re Article 370* recorded the Union's assurance of restoration but imposed no judicial deadline. Thus, representative government has returned within a Union Territory structure, while full federal parity remains pending.

Verified PYQ 2 - UPSC CSE Prelims 2025, GS Paper I, Question 52

Consider the following pairs:

State	Description
I. Arunachal Pradesh	The capital is named after a fort, and the State has two National Parks
II. Nagaland	The State came into existence on the basis of a Constitutional Amendment Act
III. Tripura	Initially a Part 'C' State, it became a centrally administered territory with the reorganization of States in 1956 and later attained the status of a full-fledged State

How many of the above pairs are correctly matched?

A. Only one B. Only two C. All the three D. None

Official UPSC Set-A answer: C.

- Pair I is accepted as correct: Itanagar is named after Ita Fort; Arunachal Pradesh has Namdapha and Mouling National Parks.
- Pair II is accepted as correct: Nagaland's Statehood settlement combined the State of Nagaland Act, 1962 with the Thirteenth Amendment, which inserted Article 371A and commenced with State formation.
- Pair III is accepted as correct: Tripura moved from Part C/central administration to Union Territory status and later Statehood.

Official-key discipline: The printed answer follows the locally verified final UPSC key. No answer letter is inferred for any unavailable objective key.

Six original Mains questions with model answers

Original Mains 1 - 10 marks, maximum 150 words

Question: Explain why Articles 371-371J should be understood as asymmetric federal arrangements rather than identical autonomy grants.

Model answer

India's Constitution uses asymmetry to fit different historical and developmental problems within one Union. Articles 371-371J therefore do not confer a common package. Article 371 and 371J pursue regional development; 371A and 371G require State-Assembly resolution before Parliamentary laws apply in specified customary and land fields; 371B and 371C create legislative committee mechanisms; 371D structures local public-employment and educational opportunity; 371F manages Sikkim's integration; 371H creates bounded gubernatorial responsibility; and 371I fixes Goa's Assembly minimum.

This variation matters analytically. Each clause identifies a protected interest, constitutional actor and instrument. The provisions can strengthen integration by recognising difference without conceding separate sovereignty. Yet legitimacy depends on narrow construction, transparent implementation and judicial review. Thus, Article 371 arrangements are best seen as purpose-specific federal accommodations, not interchangeable grants of autonomy.

Original Mains 2 - 10 marks, maximum 150 words

Question: Differentiate Articles 371A and 371G with reference to their protected fields and additional safeguards.

Model answer

Articles 371A and 371G both prevent automatic application of Parliamentary laws in four fields unless the respective State Assembly resolves otherwise: religious or social practices, customary law and procedure, administration of civil and criminal justice involving customary-law decisions, and land ownership/transfer.

Their texts differ. Article 371A for Nagaland expressly includes land 'and its resources.' It also contains a conditional Governor law-and-order responsibility, protection of earmarked Union grants and historically bounded Tuensang arrangements. Article 371G for Mizoram omits the resource phrase, saves Central Acts already in force immediately before its commencement, and fixes the Assembly at not less than forty members.

Hence both are consent shields, but neither is a general veto over Parliament. Exact subject wording, additional clauses and historical boundaries must control the comparison.

Original Mains 3 - 15 marks, maximum 250 words

Question: Examine Article 371D as a mechanism of regional equality after the bifurcation of Andhra Pradesh.

Model answer

Article 371D translates regional equality into an administrable constitutional mechanism. Clause (1), adapted by section 97 of the Andhra Pradesh Reorganisation Act, 2014, permits State-specific Presidential orders for equitable public-employment and educational opportunities in Andhra Pradesh and Telangana. Clause (2) authorises local cadres, local areas and residence-or-study-based preference or reservation.

Post-bifurcation implementation is separate. Telangana's G.S.R. 820(E) of 29 August 2018 superseded the 1975 order for Telangana and organised district, zonal and multi-zonal cadres. Andhra Pradesh's S.O. 5777(E) of 15 December 2025, republished on 20 April 2026, now supplies its own cadre structure. These orders show that Article 371D survives as a differentiated opportunity framework.

Its tribunal history must not be confused with that framework. P. Sambamurthy invalidated clause (5)'s executive power over tribunal decisions for violating rule of law; the tribunal was later abolished under clause (8) in 2020.

Article 371D can correct territorial disadvantage, but fragmented cadres may affect mobility and administrative flexibility. Transparent local-candidate rules, current schedules, grievance redress and outcome audits are therefore essential.

Original Mains 4 - 15 marks, maximum 250 words

Question: Analyse Article 371F as a constitutional instrument of Sikkim's integration.

Model answer

Article 371F is a constitutional integration code rather than a single privilege. The Thirty-fifth Amendment, 1974 first created an associate-State arrangement through Article 2A and the former Tenth Schedule. The Thirty-sixth Amendment, 1975 replaced it with full Statehood and inserted Article 371F.

The provision combined representation, continuity and executive safeguards. It fixed a thirty-member Assembly minimum and empowered Parliament to protect different sections of Sikkim's population through seats and constituency design. It continued the existing High Court, courts, authorities, property and laws, thereby preventing an institutional vacuum. The Governor received special responsibility for peace and equitable social-economic advancement, acting in discretion subject to Presidential directions. The President received a two-year power to adapt old laws and a continuing power to extend other State enactments with modifications.

In R.C. Poudyal, the Supreme Court largely sustained historically tailored representation in the context of integration. This supports accommodation but not blanket immunity from equality review.

Article 371F thus joined full membership of the Union with transitional continuity. Its historical clauses should not be misrepresented as current routine powers, and its exceptional design remains bounded by constitutional purpose and review.

Original Mains 5 - 20 marks, maximum 250 words

Question: Critically evaluate whether State-specific special provisions strengthen Indian federalism.

Model answer

State-specific provisions strengthen federalism when they transform diversity and disadvantage into enforceable constitutional accommodation. Articles 371A and 371G protect customary institutions and land through Assembly consent. Articles 371 and 371J address intra-State regional imbalance through boards, reports, funds and opportunity. Articles 371B and 371C institutionalise tribal or hill-area voice. Article 371D distributes public employment and educational access; Article 371F secured continuity during Sikkim's integration.

These mechanisms can reduce alienation, preserve negotiated settlements and produce substantive equality. They also demonstrate that equal Statehood need not require identical rules. R.C. Poudyal illustrates judicial willingness to consider historical context.

However, asymmetry creates risks. Vague claims of gubernatorial discretion may weaken responsible government. Local preferences may harden insider-outsider divisions or benefit local elites. Dormant boards, unpublished reports and stale territorial criteria can turn constitutional promises into symbolism. P. Sambamurthy confirms that special design cannot destroy effective judicial review or rule of law.

Reform should therefore focus on published orders, annual legislative reports, outcome indicators, transparent eligibility certificates, grievance mechanisms and protection of minorities within protected regions. Periodic review should test implementation without unilaterally erasing negotiated guarantees.

Thus, asymmetry is neither a constitutional defect nor an automatic success. It strengthens federalism when purpose-specific difference remains democratic, evidence-based and reviewable.

Original Mains 6 - 20 marks, maximum 250 words

Question: Critically examine the post-2019 constitutional position of Article 370 in light of In re Article 370 (2023).

Model answer

The post-2019 position must distinguish textual presence, legal operability and territorial reorganisation. C.O. 272 of 5 August 2019 applied the Constitution comprehensively to Jammu and Kashmir and superseded the 1954 Order, ending Article 35A's operative basis. C.O. 273 of 6 August made Article 370 inoperative except for the substituted clause (1). The Reorganisation Act, effective 31 October 2019, created J&K as a Union Territory with a legislature and Ladakh without one.

In re Article 370 (2023) held that Article 370 was temporary, that J&K retained no separate internal sovereignty, and that presidential power under Article 370(3) survived dissolution of the J&K Constituent Assembly. The Court held the Article 367 substitution in paragraph 2 of C.O. 272 ultra vires to the stated extent, yet sustained comprehensive constitutional application and upheld C.O. 273 through Article 370's valid powers.

The judgment upheld Ladakh's creation. It did not finally decide J&K's conversion from State to Union Territory after recording the Union's assurance of Statehood restoration. Elections occurred in 2024, but as of 7 September 2026 Statehood remains pending.

Therefore, the Article 370 operability issue is legally settled, while the federal status question remains politically and constitutionally unfinished.

OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

1. Asymmetry as a constitutional method

Asymmetry is not an exception to federalism; it is one possible form of federal design. The analytical test is whether a difference has a constitutional source, a defined purpose, an accountable actor and a reviewable limit. Development boards, consent shields and local cadres solve different coordination problems. A good answer therefore avoids the binary of 'uniformity equals unity' versus 'special status equals separation.'

2. Constituent power and rule-of-law limits

P. Sambamurthy is important because Article 371D itself was created through constitutional amendment. The Court nevertheless held clause (5) void: an executive party could not neutralise a tribunal's final adjudication without damaging rule of law and effective judicial review. The refinement is precise - constitutional asymmetry may rearrange institutions, but it cannot make adjudication dependent on the losing executive.

3. Historical representation after R.C. Poudyal

R.C. Poudyal demonstrates contextual equality review. The majority treated Sikkim's unusual representational settlement against the history of accession and population protection. Use the case to show that formal deviations may serve integration. Do not cite it for the proposition that every community-based seat is valid or that Article 371F is immune from Articles 14 and 325.

4. Consent during constitutional transition

The Article 370 litigation raised the difficult question of using Parliament as the State legislature during President's Rule. The 2023 judgment sustained the constitutional result but invalidated the Article 367 substitution to the stated extent. An advanced answer should separate legal holding from normative criticism: validity under the judgment does not eliminate debate about federal consent and institutional trust.

5. Resource federalism under Article 371A

The words 'land and its resources' make Article 371A relevant to resource governance, but they do not answer every dispute automatically. One must ask whether the impugned Parliamentary Act is 'in respect of' the protected field, whether the Nagaland Assembly has resolved to apply it, and how other constitutional provisions and judicial doctrines interact. Avoid presenting the clause as a free-standing ownership code.

6. Evaluation matrix

Test	Question
Purpose	Which historical, cultural or developmental problem is addressed?
Fit	Does the mechanism match that problem?
Actor	Who decides: President, Governor, Parliament or Assembly?
Accountability	Is there reporting, review, grievance redress or legislative control?
Distribution	Who benefits, who is excluded and are internal minorities protected?
Currency	Is the cited order, board, cadre or status current on the answer date?

CONSOLIDATED REGISTER NOTES

Core constitutional map

- Part XXI permits purpose-specific constitutional differentiation within one Union.
- Articles 371-371J concern twelve States; the family is not one common autonomy package.
- Memorise every provision as: **State -> Article -> amendment -> actor -> mechanism -> limit.**

Exact Article decoder

Provision	Decoded rule
Article 371	President may assign Maharashtra/Gujarat Governors responsibility for separate regional boards, annual Assembly reports, equitable development expenditure and adequate technical/vocational/State-service opportunity.
Article 371A	Nagaland Assembly-resolution shield for four fields; separate conditional law-order, earmarked-grant and historically bounded Tuensang clauses.
Article 371B	President may create an Assam Assembly committee of specified tribal-area MLAs plus other named MLAs and modify procedure.
Article 371C	President may create Manipur Hill Areas Committee; Governor has responsibility and reporting duty; Union may direct Hill Areas administration.
Article 371D	President may provide equitable public-employment/education opportunity through local cadres, local areas and specified residence/study preferences for AP or Telangana.
Article 371E	Parliament may by law establish a University in Andhra Pradesh.
Article 371F	Sikkim integration code: representation, continuity of laws/courts, Governor responsibility and presidential adaptation/extension powers.
Article 371G	Mizoram four-field Assembly shield, saving of old Central Acts and Assembly minimum forty.
Article 371H	Arunachal Governor's bounded law-order responsibility after consultation; President may terminate; Assembly minimum thirty.
Article 371I	Goa Assembly minimum thirty.
Article 371J	Karnataka regional board, report, equitable funds/opportunity and order-based proportionate local seats/posts for Hyderabad-Karnataka/Kalyana Karnataka.

Amendment decoder

- **Seventh Amendment, 1956, section 22:** substituted Article 371; Bombay Reorganisation Act, 1960 later adapted Maharashtra/Gujarat wording.
- **Thirteenth Amendment, 1962, section 2:** inserted Article 371A; effective 1 December 1963.
- **Twenty-second Amendment, 1969, section 4:** inserted Article 371B; effective 25 September 1969.
- **Twenty-seventh Amendment, 1971, section 5:** inserted Article 371C; effective 15 February 1972.
- **Thirty-second Amendment, 1973, sections 2-3:** removed Andhra Pradesh/old clause (1) from Article 371 and inserted Articles 371D-371E; effective 1 July 1974.
- **Thirty-fifth Amendment, 1974:** inserted Article 2A and the former Tenth Schedule for Sikkim's associate-State phase.
- **Thirty-sixth Amendment, 1975:** ended association, made Sikkim a State and inserted Article 371F; effective 26 April 1975.
- **Forty-second Amendment, 1976, section 56 / Forty-fourth Amendment, 1978, section 43:** first lengthened and then restored the duration references in Article 371F(c), a clause confined to Sikkim's transitional 1974 Assembly.
- **Fifty-third Amendment, 1986, section 2:** inserted Article 371G; effective 20 February 1987.
- **Fifty-fifth Amendment, 1986, section 2:** inserted Article 371H; effective 20 February 1987.

- **Fifty-sixth Amendment, 1987, section 2:** inserted Article 371I; effective 30 May 1987.
- **Ninety-eighth Amendment, 2012, section 2:** inserted Article 371J; effective 1 October 2013.
- **AP Reorganisation Act, 2014, section 97:** adapted Article 371D's heading and clauses (1) and (3) for Andhra Pradesh and Telangana.

Cases and current controls

- **P. Sambamurthy (1987):** Article 371D(5), including the executive annulment proviso, violated rule of law/basic structure; the rest of 371D was not invalidated.
- **R.C. Poudyal (1993):** majority largely sustained historically tailored Sikkim representation in its integration context; no blanket immunity from equality review.
- **In re Article 370, 2023 INSC 1058:** temporary character; no separate sovereignty; Article 370(3) power survived; Article 367 substitution ultra vires to stated extent; C.O.273/result upheld; Ladakh upheld; J&K conversion not finally decided.
- **Current 7 September 2026:** J&K is a UT with legislature; Ladakh is a UT without legislature; Statehood/Sixth Schedule changes remain unenacted.
- **Article 371D:** Telangana 2018 and Andhra Pradesh 2025 employment orders supply current State-specific cadre controls; former AP Administrative Tribunal abolished in 2020.
- **Article 371J:** Constitution still says Hyderabad-Karnataka; official implementation uses Kalyana Karnataka. Percentages and district/certificate details are order-sensitive.

Last-minute traps

1. Inoperative Article 370 is not deleted Article 370.
2. Article 35A came through the 1954 Presidential Order, not the Thirty-fifth Amendment.
3. Article 371A includes land resources; Article 371G does not use that extra phrase.
4. Nagaland/Mizoram shields are field-specific, not general vetoes.
5. 371B/371C committees are not Sixth Schedule councils.
6. 371D opportunity survives; its former tribunal does not.
7. 371E is Parliament's enabling university power for Andhra Pradesh.
8. 371F is a full integration code, not merely a thirty-member minimum.
9. 371H discretion requires consultation and is confined to law and order.
10. 371I contains only Goa's thirty-member floor.
11. 371J fixes no constitutional reservation percentage.
12. Current institution/status claims require a date and operative order.

30-second answer spine

Define asymmetric federalism -> **classify** mechanism -> **name** State, Article, amendment and actor -> **decode** legal operation -> **cite** order/case -> **evaluate** integration and equality -> **qualify** implementation/current status -> **conclude** with accountable accommodation.

Complete Topic 22 ASCII master flow diagram

ASCII MASTER FLOW - PANEL 1/12: CORE CONCEPT AND OWNERSHIP
 PART XXI -> temporary + transitional + State-specific special provisions
 ONE UNION -> ordinary federal rules + purpose-specific constitutional differences
 ASYMMETRY != identical autonomy: classify each clause by State, protected field and actor
 OWNER -> Articles 371-371J + bounded Article 370/35A current-law bridge
 CROSS-LINK ONLY -> Fifth/Sixth Schedules (Topic 26); special classes (Topic 53)
 ANSWER LINE -> Indian unity accommodates difference through bounded constitutional design.

ASCII MASTER FLOW - PANEL 2/12: ORIGIN AND TIMELINE

1956 7th Amendment s.22 substitutes Article 371; 1960 Bombay reorganisation adapts it
1962 13th -> 371A | 1969 22nd -> 371B | 1971 27th -> 371C
1973 32nd -> 371D/371E and removes Andhra Pradesh from Article 371
1974 35th -> Sikkim associate-State phase | 1975 36th -> Statehood + 371F
1986 53rd -> 371G | 1986 55th -> 371H | 1987 56th -> 371I
2012 98th -> 371J; effective 1 Oct 2013 | 2014 s.97 adapts 371D
2019 Article 370 orders/reorganisation | 2023 Supreme Court judgment.

ASCII MASTER FLOW - PANEL 3/12: ARTICLE 371 - REGIONAL EQUITY

PRESIDENTIAL ORDER may assign Governor special responsibility for:
MAHARASHTRA -> Vidarbha + Marathwada + rest of Maharashtra
GUJARAT -> Saurashtra + Kutch + rest of Gujarat
MECHANISM -> separate boards -> annual Assembly report -> equitable development funds
-> adequate technical/vocational facilities + State-service opportunities
LIMIT -> constitutional authority does not prove a board is currently constituted.
TRAP -> Article 371 is a development-equity device, not a customary-law veto.

ASCII MASTER FLOW - PANEL 4/12: ARTICLE 371A - NAGALAND

ASSEMBLY-RESOLUTION SHIELD covers only:
1 religious/social practices | 2 customary law/procedure
3 civil/criminal justice involving decisions under customary law
4 ownership/transfer of land AND its resources
SEPARATE CLAUSES -> earmarked Union grants; conditional Governor law-order responsibility
TUENSANG -> 35-member Regional Council and special administration for base ten years
from 1 Dec 1963, extendable by notified Governor action
LIMIT -> historical transition is not a perpetual general veto over Parliament.

ASCII MASTER FLOW - PANEL 5/12: COMMITTEE MODELS - 371B AND 371C

371B ASSAM -> President may create Assembly committee:
members elected from Sixth-Schedule Part I tribal areas + specified other MLAs
and may modify Assembly procedure for its functioning
371C MANIPUR -> President may create Hill Areas Committee and modify business/procedure
Governor -> special responsibility + annual/on-demand report to President
Union -> may direct State on administration of declared Hill Areas
TRAP -> legislative committees are not Sixth Schedule autonomous councils.

ASCII MASTER FLOW - PANEL 6/12: ARTICLE 371D/371E - LOCAL OPPORTUNITY

371D -> President may secure equitable public-employment and education opportunity
TOOLS -> local cadres + local areas + residence/study-based preference or reservation
2014 AP Reorganisation Act s.97 -> applies framework separately to AP and Telangana
TELANGANA -> G.S.R. 820(E), 29 Aug 2018; republished G.O.Ms.124, 30 Aug 2018
ANDHRA PRADESH -> S.O.5777(E), 15 Dec 2025; republished G.O.Ms.45, 20 Apr 2026
371E -> Parliament may establish a Central University in Andhra Pradesh
TRAP -> 371E is enabling power, not the local-reservation mechanism.

ASCII MASTER FLOW - PANEL 7/12: TRIBUNAL HISTORY UNDER ARTICLE 371D

371D(3)-(4) -> President could constitute tribunal for specified service matters
371D(5) -> State confirmation/annulment mechanism
P. SAMBAMURTHY (1987) -> clause (5), including proviso, void:
executive veto over adjudication violated rule of law/basic structure
371D(7) text excluded High Court superintendence; later tribunal doctrine restored review
371D(8) -> President may abolish tribunal and transfer pending cases
G.S.R. 30(E), 14 Jan 2020 -> AP Administrative Tribunal abolished
LIMIT -> tribunal history must not be presented as the current opportunity framework.

ASCII MASTER FLOW - PANEL 8/12: ARTICLE 371F - SIKKIM INTEGRATION

35th Amendment, 1974 -> Article 2A + old Tenth Schedule: associate-State phase
36th Amendment, 1975 -> full Statehood; omitted associate-State scheme; inserted 371F
CURRENT CORE -> Assembly at least 30; Parliament may protect population sections
CONTINUITY -> existing High Court, courts, authorities, property and laws continued
GOVERNOR -> discretion for peace and equitable advancement, subject to President
PRESIDENT -> two-year adaptation power for old laws; extension of other State enactments
R.C. POU DYAL (1993) -> historically tailored representation largely sustained.

ASCII MASTER FLOW - PANEL 9/12: 371G, 371H AND 371I

371G MIZORAM -> Assembly resolution needed for Parliamentary laws on:

Mizo practices | customary law/procedure | customary justice | land ownership/transfer

PRE-COMMENCEMENT CENTRAL ACTS saved; Assembly minimum 40

371H ARUNACHAL -> Governor consults ministers, then individual judgment on law/order;

President may terminate responsibility; Assembly minimum 30

371I GOA -> Assembly minimum 30; no land/custom shield or Governor discretion

TRAP -> similar Statehood-era origins did not produce identical constitutional designs.

ASCII MASTER FLOW - PANEL 10/12: ARTICLE 371J - KALYANA KARNATAKA

Constitutional text names HYDERABAD-KARNATAKA; official current usage: KALYANA KARNATAKA

PRESIDENTIAL ORDER may assign Governor responsibility for:

development board + annual Assembly report + equitable funds + opportunity

371J(2) may reserve a proportion of regional education/training seats

and identified State-controlled posts for persons belonging by birth or domicile

2013 State notifications operationalise employment/admission/certificate machinery

LIMIT -> Constitution fixes no universal percentage; current rules/orders control details.

ASCII MASTER FLOW - PANEL 11/12: ARTICLE 370/35A - BOUNDED OWNER BRIDGE

1947 accession -> Article 370 application mechanism -> 1954 Order inserts Article 35A

5 Aug 2019 C.O.272 applies Constitution comprehensively and supersedes 1954 framework

6 Aug 2019 C.O.273 renders Article 370 inoperative except modified clause (1)

31 Oct 2019 -> J&K UT with legislature + Ladakh UT without legislature

IN RE ARTICLE 370 (11 Dec 2023) -> temporary character; no separate sovereignty;

Article 367 substitution ultra vires to stated extent; result and C.O.273 upheld

LIMIT -> J&K State-to-UT validity not finally decided; Ladakh creation upheld.

ASCII MASTER FLOW - PANEL 12/12: TRAPS AND MAINS ANSWER SPINE

NEVER FLATTEN -> development | consent shield | committee | local opportunity

integration | law-order responsibility | minimum Assembly size

NEVER MERGE -> constitutional text | amendment | Presidential order | statute

State implementation | judgment | dated current status

ANSWER -> define asymmetry -> timeline -> classify provision -> name actor

-> decode mechanism -> cite amendment/order/case -> evaluate benefit

-> qualify implementation, equality and judicial-review limits

CONCLUSION -> calibrated difference can deepen unity when transparent and reviewable.